



Mathew Tyler

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Plaintiff, *Pro per pro se*

Dated: March 19, 2025

UNITED STATES DISTRICT COURT

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS,

US DEPARTMENT OF JUSTICE,

US Attorney's Office, Northern California,

Benjamin C. Mizer, Et Esq., In official Capacity as Principal Deputy Associate

Attorney General, US Department of Justice,

California Attorney General,

Shirley Weber in her official capacity as California Secretary of State,

1 **Fiona Ma, in her official capacity as California State Treasurer,**
2 **James Gallagher, in official capacity as CA. Assemblyman,**
3 **Washington US Attorney / DOJ,**
4 **Utah Lt. Governor,**
5 **Utah Attorney General,**
6 **New Hampshire DOJ,**
7 **Rhode Island EEOC,**
8 **DOES 1-49, Secretaries of State for the other 49 states,**

9 ***DEFENDANTS.***

10

11 **CASE NO.:** _____

12 **COMPLAINT FOR TREASON, MISPRISION OF TREASON, VIOLATIONS OF**
13 **CIVIL RIGHTS, AND OTHER CRIMES**

14 **IMMEDIATE INJUNCTIVE RELIEF SOUGHT**

15 **INTRODUCTION**

16 Plaintiff MATHEW TYLER ("Plaintiff"), an indigent layperson, a qualified individual
17 with disabilities, a crime victim as defined under federal law (18 U.S.C. § 3771, 34

1 U.S.C. § 20141(e)(2)) and state of California law (California Constitution Article 1 § 28).

2 As such, Plaintiff is entitled to specific rights under federal law, including the right to fair
3 treatment and due process. Plaintiff is appearing pro per pro se and proceeding in forma
4 pauperis.

5 Although the finality of crimes committed by defendants was in California, the crimes
6 originated from all 50 states and the federal government. “Elected” “representatives”
7 being defendants, the US District Court for the Eastern District of California being prima
8 facie biased against crime victims, especially crime victims with a disability to obstruct
9 justice of Plaintiff by refusing to rule on the immediate relief sought, summary judgment
10 motion, or conducting the trial Plaintiff was extorted by the Court into paying to have and
11 thereby is entitled to have, “law enforcement” agencies in California refusing to uphold
12 the US Constitution and prosecute as required by law, Plaintiff hereby moves every other
13 US District Court around the entire country to uphold the law.

14 In accordance with the checks and balances established by the US Constitution and
15 pursuant to 42 U.S.C. § 1987, Plaintiff hereby moves this Court to immediately institute
16 prosecutions as “...**authorized and required**...” by law for the deprivation of rights 18
17 U.S.C. §§ 241-242, treason, misprision of treason, and other crimes against Plaintiff, all
18 citizens, and the United States. Although Plaintiff is a resident of California, all states
19 and Courts, including without limitation to US District Courts being paid for with the
20 public pursue, ultimately by monies from the federal government, as states do not mint
21 their own monies, thereby affording Plaintiff to programs/services in accordance with the
22 5th and 14th amendments to the US Constitution.

1 The treasonous crimes of rigging the 2024 US Presidential election has not only deprived
2 Plaintiff of participating in programs/services of the government paid for with the public
3 purse without first affording Plaintiff due process, it has also denied presiding Court(s),
4 Judge(s), and all citizens of the United States of fair and free services paid for with the
5 public purse without first affording anyone with “due process” as required by the US
6 Constitution making the entire 2024 US Presidential election and everything arising from
7 it illegitimate and invalid as “Fruit of the poisonous tree”. The origin of all of this is fraud
8 which makes all of the fruit fraud.

9 **LEGAL STANDARD**

10 In re Murchison, 349 U.S. 133, 136 (1955) (holding that "justice must satisfy the
11 appearance of justice"). Courts have recognized that access to judicial proceedings
12 constitutes a "benefit, service, privilege, program, facility, or activity" under these
13 provisions. See United States v. Lanier, 520 U.S. 259, 272 (1997) (acknowledging that
14 federal civil rights statutes protect access to justice). Under California Civil Code § 52.1,
15 Plaintiff has a direct cause of action against those who interfere with the exercise or
16 enjoyment of constitutional rights through threat, intimidation, or coercion. The
17 California Supreme Court has recognized that this provision should be construed broadly
18 to protect the exercise of rights guaranteed by federal or state law. See Venegas v. County
19 of Los Angeles, 32 Cal. 4Th 820, 843 (2004).

20 The Supreme Court has consistently held that there must be "meaningful access to
21 justice" for all persons regardless of their financial means. See Griffin v. Illinois, 351
22 U.S. 12, 17 (1956) ("There can be no equal justice where the kind of trial a man gets
23 depends on the amount of money he has."); Boddie v. Connecticut, 401 U.S. 371, 380-81

(1971) (finding due process violated where court filing fees barred indigent individuals from court access in cases involving fundamental rights). When indigent pro se litigants are not afforded the same consideration as represented parties with financial resources, the principle of equal justice is undermined. See *Cruz v. Beto*, 405 U.S. 319, 321 (1972) (emphasizing that pro se complaints must be liberally construed).

The ADA prohibits discrimination against individuals with disabilities and requires public entities, including courts, to make reasonable modifications to policies, practices, and procedures when necessary to avoid discrimination on the basis of disability. 42 U.S.C. § 12132; 28 C.F.R. § 35.130(b)(7).

Section 504 of the Rehabilitation Act similarly prohibits discrimination against qualified individuals with disabilities by any program or activity receiving federal financial assistance. 29 U.S.C. § 794(a).

Under the Crime Victims' Rights Act, crime victims have "[t]he right to be treated with fairness and with respect for the victim's dignity and privacy." 18 U.S.C. § 3771(a)(8).

As a pro se litigant proceeding in forma pauperis, Plaintiff's sworn declaration serves this purpose. See *Williams v. New York City Housing Authority*, 287 F. Supp. 2d 247, 249 (S.D.N.Y. 2003) (construing pro se litigant's declaration as an affidavit for purposes of § 144).

The courts have a heightened duty to construe pleadings liberally and to afford greater latitude when evaluating the filings of in forma pauperis and pro se litigants. See *Haines v. Kerner*, 404 U.S. 519, 520-21 (1972) (pro se complaints are held "to less stringent standards than formal pleadings drafted by lawyers"); *Erickson v. Pardus*, 551 U.S. 89, 94

1 (2007) (pro se pleadings must be liberally construed); *McElyea v. Babbitt*, 833 F.2d 196,
2 197 (9th Cir. 1987) ("The court has a duty to ensure that pro se litigants do not lose their
3 right to a hearing on the merits of their claim due to ignorance of technical procedural
4 requirements."); *Johnson v. Reagan*, 524 F.2d 1123, 1124 (9th Cir. 1975) (motions of self-
5 represented, in forma pauperis plaintiffs "should be viewed with special solicitude").

6 Furthermore, as recently affirmed in *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P,
7 (E.D. Cal. Jan. 29, 2025), "The Court must also construe the alleged facts in the light
8 most favorable to the plaintiff. See *Scheuer v. Rhodes*, 416 U.S. 232, 236 (1974); see also
9 *Hosp. Bldg. Co. v. Rex Hosp. Trustees*, 425 U.S. 738, 740 (1976); *Barnett v. Centoni*, 31
10 F.3d 813, 816 (9th Cir. 1994) (per curiam). All ambiguities or doubts must also be
11 resolved in the plaintiff's favor. See *Jenkins v. McKeithen*, 395 U.S. 411, 421 (1969)."

12 This principle is particularly relevant in cases involving pro se litigants with disabilities
13 seeking reasonable accommodations to access the courts.

14 The Judicial Conference of the United States has adopted a policy that all federal courts
15 are to provide reasonable accommodations to persons with communications disabilities.

16 This Court has also adopted local rules implementing these requirements.

17 Plaintiff requests appointment of counsel pursuant to 28 U.S.C. § 1915(e)(1), which
18 provides that "[t]he court may request an attorney to represent any person unable to
19 afford counsel." Plaintiff is indigent and proceeding in forma pauperis. Due to Plaintiff's
20 disabilities, Plaintiff requires the assistance of counsel to effectively participate in these
21 proceedings.

1 In determining whether to appoint counsel, courts consider: (1) the plaintiff's likelihood
2 of success on the merits; (2) the ability of the plaintiff to articulate his claims pro se in
3 light of the complexity of the legal issues involved; (3) the complexity of the legal issues;
4 (4) the plaintiff's ability to investigate his case; and (5) whether the case will require
5 expert testimony. See *Agyeman v. Corr. Corp. of Am.*, 390 F.3d 1101, 1103 (9th Cir.
6 2004). Consistent with *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P, (E.D. Cal. Jan.
7 29, 2025), the Court must construe these factors in the light most favorable to Plaintiff,
8 and resolve any ambiguities or doubts in Plaintiff's favor.

9 In this case, appointment of counsel is warranted as a reasonable accommodation under
10 the ADA and Section 504 to ensure Plaintiff's meaningful access to the courts. See *Lane*
11 *v. Pena*, 867 F. Supp. 1050, 1059 (D.D.C. 1994) (recognizing that in appropriate
12 circumstances, appointment of counsel may be required as a reasonable accommodation
13 under the Rehabilitation Act).

14
15 In instituting prosecutions, this Court is hereby directed to use or modify Plaintiff's initial
16 complaint and Plaintiff's motion for summary judgment filed with US District Court,
17 Eastern District of California, Case No.: 2:2025CV00404; if necessary, the Court can
18 modify it to conform to this court's requirements.

19
20 As Plaintiff is indigent, in forma pauperis, Plaintiff hereby moves for this Court in its
21 institution of prosecutions to use public purse resources; i.e., paper, ink, etc.. as
22 necessary. **All evidence and filings are publicly posted on the Internet for perpetuity**

1 **for the entire world to see if the US Constitution matters and who, if anyone other**
2 **than Plaintiff upholds the letter of the law:**

3 <https://www.FakeGov.com>

4 Alternatively available at: https://dlike.co/google_discovery and

5 https://dlike.co/proton_discovery

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7

Section 504 / ADA Accessibility/Request for Modifications

I. Authority

a) Pursuant to Article 6, Clause 2 of the U.S. Constitution (herein the “SUPREMACY CLAUSE”), in accordance with the 1st amendment to the U.S. Constitution to petition the Government for a redress of grievances via the 14th amendment to the U.S. Constitution as/if/when necessary; 18 U.S.C. § 3771, 42 U.S.C. § 12202, “*Section 504 of the Rehabilitation Act of 1973*,” 29 U.S.C. § 794 (herein “Section 504”), the “*Americans with Disabilities Act of 1990*,” 42 U.S.C. §§ 12101 et seq. (herein “ADA”); and the 1990 Copenhagen Commitment sections 5.1, 5.3, 5.4, 6, 7.1, 7.3, 7.5, 7.6, 7.7, 7.8; collectively herein “AUTHORITY”.

b) Preemption of inconsistent state law when necessary to effectuate a required “reasonable modification” is affirmed by, *Mary Jo C. v. New York State and Local Retirement Sys.*, No. 11-2215, 35 at 6 - 36 at 2, 37 at 7 - 39 at 9 (2d Cir. 2013)

II. Request

a) Pursuant to the aforementioned AUTHORITY, as a U.S. citizen and qualified individual with a disability¹², Mathew Tyler (herein “Mr. Tyler” and “REQUESTOR”) hereby requests the following reasonable modifications in: policies, practices, and procedures;

1 42 U.S.C. § 12131(2)

2 Afflicted with Central core disease and ADHD; major life activities affected by Central core disease: performing manual tasks, walking, standing, lifting, bending, breathing, and stamina; ADHD: learning, reading, concentrating, thinking, communicating, time/appointments, and working

1. an exception to all and any policies, practices, or procedures that might prevent in whole or in part this complaint from being investigated and acted upon fully in its entirety.
2. If the Judge presiding on this obstructs justice by not uphold the law, that the Judge amendment Plaintiff's complaint with the Judge's name and forward everything to the local US Attorney and US Marshal Service for enforcement as authorized and required by 42 U.S.C. § 1987.

Dated: 03/19/2025

Respectfully submitted,



Mathew Tyler

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Plaintiff, Pro per pro se

1 **VERIFICATION**

2 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
3 that the foregoing is true and correct to the best of my knowledge and belief.

4
5 Executed on 03/19/2025, at Butte County, California.

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8



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14 **Plaintiff, Pro per pro se**

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